

Court No. - 39

Case :- WRIT - C No. - 34991 of 2018

Petitioner :- Sophiya Khan @ Safi Ahamad Khan

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rama Shankar Mishra

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble B. Amit Sthalekar,J.

Hon'ble Surya Prakash Kesarwani,J.

Heard Sri O.P. Mishra, holding brief of Sri Rama Shankar Mishra, learned counsel for the petitioner, Sri Chandan Agarwal, learned counsel for the State-respondent no.2 and learned standing counsel for respondent nos. 1 and 3.

Petitioner in the writ petition is seeking quashing of the recovery certificate dated 9.8.2018 whereby a demand of Rs.1,65,779/- has been raised from the petitioner. According to the petitioner he has paid a sum of Rs.70,000/- up to February 2018 on 21.2.2018, but the demand notice shows that the total dues against the petitioner was Rs.1,75,128/- and that after deducting Rs.70,000/- the dues come to Rs.1,05,128/- plus any other amount which may have been consumed by the petitioner thereafter.

The counsel for the petitioner admits that the petitioner has not approached the electricity department for correction of the bill as is provided under Clause 6.5(b) of the Electricity Supply Code, 2005, which requires that if the consumer disputes the accuracy of any bill, he may either make the payment under protest of an amount equal to the sum claimed from him or the electricity charges calculated on the basis of average of electricity bills of the preceding six months, whichever is less and file a complaint with the competent authority, before the due date for payment.

"Clause 6.5 Disputed Bills and Arrears

(b) If a consumer disputes the accuracy of any bill, he may either make the payment under protest of (i) an amount equal to the sum claimed from him, or (ii) the electricity charges calculated on the basis of average of electricity bills of the preceding six months, whichever is less and file a complaint with the competent authority, before the due date for payment. The complaint shall be decided with 7 days and consumer shall be informed."

The admitted position is that till date the petitioner has not approached the department. We, therefore, do not find any good ground to interfere in the writ petition.

Writ petition is **dismissed**.

Order Date :- 22.10.2018/vkg